

AKH

Date: 3/3/15

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE REPEALING CHAPTER 5.76, TEMPORARY OR TRANSIENT MERCHANTS, IN ITS ENTIRETY AND RE-CREATING CHAPTER 5.76, TEMPORARY OR TRANSIENT MERCHANTS; RESIDENTIAL DOOR-TO-DOOR SOLICITORS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 5.76, Temporary or Transient Merchants, is repealed in its entirety and a new Chapter 5.76, Temporary or Transient Merchants; Residential Door-to-Door Solicitors, is hereby re-created as follows:

**Chapter 5.76
TEMPORARY OR TRANSIENT MERCHANTS; RESIDENTIAL
DOOR-TO-DOOR SOLICITORS**

5.76.010 Intent - Authority - General provisions.

A. The purpose of this chapter is to establish regulations and procedures for regulating and licensing temporary or transient merchants and residential door-to-door solicitors conducting or soliciting sales and related activities within the city.

B. The city of Cheyenne is authorized by Wyo. Stat. Section 15-1-103(a)(xiii) and Wyo. Stat. Section 33-20-210 to regulate and license the conduct of sales by temporary or transient merchants and residential door-to-door solicitors for the public health, safety and welfare of its citizens.

C. The city clerk may request any supporting documentation in conjunction with applications for a temporary or transient merchant or residential door-to-door solicitors business license, and to review requests for exemption from a license as set forth in this chapter.

1. Prior to issuing a temporary or transient merchant business license, including a comprehensive temporary or transient license, the city clerk may request various city department representatives to review and inspect proposed temporary premises or sales sites for applicants proposing to sell goods, merchandise or services from fixed stands, tables, booths, vehicles or trailers.

2. Prior to issuance of a residential door-to-door solicitors business license, the applicant must provide written acknowledgment that he or she has received, read and understands

the provisions of this chapter of city code applicable to door-to-door solicitors; affirm that the requirements of this chapter will be shared with all approved individual door-to-door solicitors, and agree to be held responsible for the actions of approved solicitors affiliated with the applicant to be licensed.

5.76.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

“Applicant” means an individual who is at least eighteen (18) years of age. If an applicant is affiliated with a corporation, partnership, limited liability company, organization, association or other lawfully formed entity, the individual must be a designated representative of same.

“Charitable organization” means any association, organization, corporation, partnership, limited liability company, or lawfully formed entity that is:

1. A benevolent, educational, philanthropic, humane, patriotic, religious, social welfare, advocacy, public health, environmental, conservation, or civic organization established for any charitable purpose, and

2. Tax exempt under applicable provisions of the Internal Revenue Code, as amended, and qualified under federal law to solicit and receive tax deductible contributions from the public for charitable purposes.

“Comprehensive license” means an annual temporary or transient merchant business license issued to a permanent organization or business, or to an applicant in conjunction with a special local temporary event or activity, which allows any number of temporary or transient merchants to sell or offer for sale retail goods, merchandise or services from fixed stands, tables, booths, vehicles or trailers at the location identified on the application, or renewal application, form. A comprehensive license does not include the sale of food items requiring a separate license or permit pursuant to Chapter 8.40 of city code. A comprehensive license pertains to sales activities involving temporary or transient merchants only and not residential door-to-door solicitors.

“Contribution” or “contributions” means and includes the words alms, food, clothing, money, property, financial assistance or other things of value. A contribution, as defined herein, will also include a residential door-to-door solicitor selling or offering to sell any book, card, magazine, membership, merchandise, subscription, ticket or other thing in connection with which an appeal is made for charitable, educational or religious purposes.

“Door-to-door solicitor” or “solicitors” means any individual, as approved in conjunction with a residential door-to-door solicitors business license, attempting to make personal contact with any person at a place of residence within the city, without prior invitation by or appointment with

the resident, for the purpose of solicitation or sale of goods, merchandise or services.

“License identification badge” means the identification badge issued by the city clerk to an individual approved to conduct door-to-door solicitation activities in conjunction with a residential door-to-door solicitors business license. Each badge will contain a current photograph of the individual to whom the badge is assigned.

“No soliciting” or “no solicitation” sign means a reasonably visible and legible sign posted upon residential premises that states “no soliciting,” “no solicitors,” “no trespassing,” or words of similar import.

“Permanent place of business” means a recognized, fixed business location within the city at which the business owner, manager or designated agent actively operates a business which is open to the public on a year-round basis with regularly established hours of business. A permanent place of business also includes a location within the city in which a person conducts business as a home occupation and the person provides goods, merchandise or services, or delivers orders for same, to a customer’s residence upon the customer’s prior request or invitation.

“Religious” means and includes the word “charitable,” as herein defined, but will be given its commonly accepted definition.

“Residence”, “residential” or “residential premises” means any living unit contained within any building, structure, or manufactured housing unit that is predominantly occupied by any person as a dwelling, together with the lot, or other real property on which the living unit is located.

“Residential door-to-door solicitors business license” means the license issued by the city clerk in connection with a valid application as outlined in this chapter, and applies only to solicitation activities involving personal contact with any person at a place of residence within the city, without prior invitation by or appointment with the resident, for the purpose of solicitation or sale of goods, merchandise or services. A residential door-to-door solicitors business license is only valid for a period of fourteen (14) consecutive days beginning on the date of issuance.

“Sale”, “sales”, “sell” or “offer for sale” of goods, merchandise or services means any verbal or written agreement involving a solicitation between a residential door-to-door solicitor and an adult individual residing within a residence.

“Solicit” and “solicitation” mean and include any one or more of the following activities conducted by an individual approved as a residential door-to-door solicitor:

1. Attempting or offering to sell or taking sales orders, for present or future delivery, of any goods, merchandise or services of any kind, character or description, primarily for personal, family or household purposes;

2. Attempting or offering to sell or taking sales orders, for present or future delivery, of books, magazines, periodicals, newspapers and every other type or kind of publication; or

3. Requesting directly or indirectly contributions on the plea or representation that such contributions will be used for a charitable, educational or religious purpose; where any such offer, taking, attempt or request is personally solicited or a sale of goods or services is consummated in or upon the premises of an actual or prospective customer or donor.

“Temporary or transient merchant” means all persons not having a permanent place of business within the city who are engaged in selling or offering for sale any retail goods, merchandise or services. Numerous temporary or transient merchants may be licensed under a comprehensive license pursuant to an approved application.

“Temporary or transient merchant business license” means a license issued by the city clerk in connection with a valid application as outlined in this chapter, and applies only to those merchants who wish to sell or offer for sale retail goods, merchandise or services from fixed stands, tables, booths, vehicles or trailers at the location identified on the application or renewal application form. A transient business merchant license is only valid for a period of fourteen (14) consecutive days beginning on the date of issuance.

5.76.030 Temporary or Transient Merchant - Comprehensive – License required – Application.

A. No person shall conduct business as a temporary or transient merchant within the city unless:

1. The person has obtained a temporary or transient merchant business license from the office of city clerk; or

2. The person is operating as a temporary or transient merchant pursuant to coverage under a comprehensive license; or

3. The person meets one of the exemptions listed in Section 5.76.060 of this chapter.

B. Persons desiring a temporary or transient merchant business license, including an annual comprehensive temporary or transient merchant license, must submit written application on forms provided by the city clerk, together with payment of the licensing fee, to the office of city clerk. Each application shall be signed by the applicant in front of a notary public and notarized by same. The licensing fee for a temporary or transient merchant license for a fourteen (14) consecutive day period, or portion thereof, will be one hundred dollars (\$100.00); the licensing fee for an annual comprehensive temporary or transient merchant license will be three hundred dollars (\$300.00) per year. Such application will include the following information, or any additional information requested by the city clerk or chief of police, or their designee:

1. Applicant's name, home address, telephone number and date of birth and, if applicable, affiliated business or organization name, business physical and mailing address and business telephone number.

2. Whether the applicant, or affiliated business or organization, has ever had a similar type of business license, whether within Wyoming or elsewhere, revoked, suspended or denied.

3. Proposed date(s) of temporary or transient sales; hours of proposed sales; sales address location and zoning classification, as defined by the Cheyenne Unified Development Code (UDC) , and description of the item(s) to be sold.

4. If applicable, whether the applicant is authorized by the Wyoming Secretary of State to do business within the State of Wyoming, and whether the applicant has contacted the Wyoming Department of Revenue and Taxation to acquire a state sales tax license.

5. Authorization for the city and its agents and employees to seek information and conduct investigations of the applicant to verify that information contained upon the application is true and correct.

6. Affirmation that the applicant agrees to comply fully with the rules and regulations of the city governing the license requested and that the applicant further declares that the information contained in the application is true and correct.

C. Upon receipt of an application and payment of the required license fee, the city clerk will forward the application to the chief of police, or designee, for an applicant background review and recommendation. The chief of police shall have the authority to recommend approval or denial of any application for a temporary or transient merchant or comprehensive temporary or transient merchant business license for the general health, safety and welfare of the community.

1. The chief of police may recommend the denial of any application that contains false, misleading or incomplete information. The city clerk may require additional inspections and approvals by other city agencies.

D. Every person licensed as a temporary or transient merchant, or comprehensive temporary or transient merchant, must at all times possess and display such license in a conspicuous place to the public while conducting sales pursuant to the license issued.

5.76.040 Residential door-to-door solicitors - License and license identification badge required – Application.

A. No person shall conduct residential door-to-door soliciting or solicitation activities unless:

1. The person has obtained a residential door-to-door solicitors business license from the office of city clerk, and
2. A license identification badge for each solicitor has been approved and issued; or
3. The person meets one of the exemptions listed in Section 5.76.060 of this chapter.

B. Persons desiring a residential door-to-door solicitors business license must submit a written application on forms provided by the city clerk, together with payment of the business license fee and license identification badge fee, to the office of city clerk. Each application shall be signed by the applicant in front of a notary public and notarized by same. The licensing fee for a residential door-to-door solicitors business license for a fourteen (14) day period, or portion thereof, will be one hundred dollars (\$100.00). The fee for each license identification badge shall be fifteen dollars (\$15.00) for a fourteen (14) day period, or portion thereof, with the effective term of the badge coinciding with the term of the business license. Such application will include the following information, or any additional information requested by the city clerk or chief of police, or their designee:

1. Applicant's name, home address, telephone number and date of birth. If applicable, the affiliated and responsible business or organization name in which the license is being requested to be issued; business physical and mailing address; business telephone number, and the name of the individual, including current contact information, who will be responsible on behalf of the licensee for supervising any individual receiving a license identification badge to conduct activities as a door-to-door solicitor pursuant to the business license. If the license is to be held in the name of a business or organization, the management point of contact person, with current contact information, is required.

2. Identification of each individual the applicant proposes to receive a license identification badge to conduct activities as a door-to-door solicitor on behalf of the licensee as follows:

- a. Full legal name, residential address, date of birth, confirmation that the individual is at least eighteen (18) years of age, and two current front-face portrait photographs of the individual which are approximately two inches by two inches in size. One photograph will be retained by the city clerk and one photograph will be affixed to the license identification badge.

3. Whether the applicant, or affiliated business or organization, has ever had a similar type of business license, whether within Wyoming or elsewhere, revoked, suspended or denied.

4. Proposed date(s) and hours of door-to-door solicitation activities; description of the goods, merchandise or services that will be offered for sale or involved in the taking of sales orders by a door-to-door solicitor, and a copy of any advertising materials (i.e. brochures, flyers, etc.

describing the goods, merchandise or services that will be offered) and any written contract or agreement that may be entered into with a customer.

5. If applicable, whether the applicant is authorized by the Wyoming Secretary of State to do business within the State of Wyoming, and whether the applicant has contacted the Wyoming Department of Revenue and Taxation to acquire a state sales tax license.

6. Authorization for the city and its agents and employees to seek information and conduct investigations of the applicant to ascertain information contained upon the application is true and correct.

7. Affirmation that the applicant agrees to comply fully with the rules and regulations of the city governing the license requested and that the applicant further declares that the information contained in the application is true and correct.

C. Upon receipt of an application and payment of the required license fee, the city clerk will forward the application to the chief of police, or designee, for an applicant background review and recommendation. The chief of police shall have the authority to recommend approval or denial of any application for a residential door-to-door solicitors business license and any affiliated license identification badge for the general health, safety and welfare of the community. In addition, the chief of police may recommend the denial of any application that:

1. Contains false, misleading or incomplete information.
2. Is related to any past door-to-door solicitors business license or license identification badge issued by the city clerk involving concerns or complaints associated with Section 5.76.050 of this chapter.

5.76.050 Residential door-to-door solicitor restrictions - Prohibited practices.

A. No solicitor may solicit without wearing or displaying the assigned license identification badge, as issued by the city clerk, to be viewable by the public at all times when conducting door-to-door solicitation. Upon request by the public or any law enforcement officer, proof of a current and valid residential door-to-door solicitors business license and license identification badge shall be made available for inspection. No solicitor shall allow another individual to use his or her assigned badge, and the badge shall not be worn or used for any other purpose by the solicitor at times other than conducting door-to-door solicitation under the business license.

B. No person shall engage in or conduct activities as a door-to-door solicitor upon any residential premises without a prior invitation from the occupant or resident thereof if such premises is posted or signed with a notice prominently displayed upon which is printed "No Solicitors" or words of similar import. For the purposes of this subsection, residential premises

will be deemed to be posted against solicitation if the notice is exhibited on or near the main entrance to the premises or on or near the main door to any residence located thereon.

C. No residential door-to-door business licensee or solicitor shall initiate solicitation activities for potential customer services affiliated with installation of any equipment involving electrical wiring, plumbing or remodeling any portion of a residential structure, without first contacting the city's building safety department to determine whether a license or permit is required.

D. No person will contact, engage in or conduct activities as a door-to-door solicitor after having been asked by the owner or occupant thereof to leave the premises or residence.

E. No person shall solicit upon any residential premises, other than prior invitation by the occupant or resident of the premises, prior to ten a.m. or after seven p.m., local time, of any day.

F. Not more than two door-to-door solicitors will engage in or conduct activities as a solicitor at the same location and time for the same goods, merchandise or services, or for religious or charitable purposes. When conducting door-to-door solicitor activities, no solicitor will be accompanied by an individual who has not been approved to receive a license identification badge. Each individual in violation of this provision will be deemed to have violated such provision.

G. No solicitor shall, at the time of initial contact with a prospective customer or donor, fail to verbally identify himself or herself and the business or company he or she represents, if applicable, and the purpose of the solicitation.

H. No person engaged in or conducting activities as a door-to-door solicitor will misrepresent the purpose of the solicitation or use any false, deceptive, misleading or untrue information or practices, including any reference to orders placed by or sales entered into by other residents or neighbors, to induce a sale, contribution, or placement of an order, or use any plan or scheme which misrepresents the true purpose of the solicitation.

I. No door-to-door solicitor shall conduct solicitor activities in a disrespectful, discourteous, aggressive, rude, offensive or inappropriate manner, including the use of abusive language. No solicitor shall enter any residence without invitation or block the passage of any resident.

J. No door-to-door solicitor shall finalize any sales or allow a customer to enter into or sign any written agreement pertaining to the purchasing, delivery, including future deliveries from orders taken, of any goods, merchandise or services without first verbally informing the potential customer of any city licenses or permits that may be required as the result of the purchase, and that the customer may have, pursuant to Wyoming law, three days in which to cancel the item(s) or services purchased or ordered.

K. No door-to-door solicitor shall make statements to potential customers or contributors indicating or implying that the residential door-to-door solicitors business license or license identification badge issued by the city clerk constitutes an endorsement by the city of the goods, merchandise or services to be offered.

5.76.060 Exemptions.

A. The following are exempt from the licensing provisions of this chapter:

1. Any person, as defined in Section 1.04.020 of city code, participating in fairs and bazaars on public property when such fair or bazaar is sponsored or entirely operated by the city;

2. Any person participating in non-profit fund-raising activities, including religious, educational and charitable activities, in which the items to be sold or raffled have been hand-crafted or hand-made by local residents;

3. Charitable, non-profit and religious organizations and persons representing them; provided, that the proceeds from sales are used only for charitable, non-profit or religious events and purposes;

4. Any fund-raising sales by a recognized school or educational organization, where profits solely benefit student members or a school/organization sponsored event.

5. Distribution of free literature or information which is not affiliated with any form of attempting or offering to sell, or taking orders for present or future delivery, of any goods, merchandise or services, or that meets the definition of "solicit".

5.76.070 License term.

A. Each initial annual comprehensive temporary or transient merchant business license will be effective for one year from date of issuance with a renewal application processed and license issued as provided in this chapter and Chapter 5.04 of city code. Any change in location for an annual comprehensive license will be pursuant to the requirements of Section 5.04.070 of city code. No change of ownership involving an annual comprehensive license is allowed.

B. Each temporary or transient merchant or residential door-to-door solicitors business license will be effective for fourteen (14) consecutive days, or portion thereof.

C. Each license identification badge issued in affiliation with a residential door-to-door solicitors business license will be effective for the same term as the business license.

D. Temporary or transient merchant and residential door-to-door solicitors business licensees may submit application(s) for additional fourteen (14) consecutive day licenses by

fulfilling the application requirements for an initial applicant under the provisions of this chapter.

5.76.080 Violations - Penalty.

A. Any person who violates any provision of this chapter will be charged with a misdemeanor, punishable pursuant to the general penalty provisions in Chapter 1.24 of city code. Each violation will be deemed a separate offense.

B. Any person holding a valid temporary or transient merchant business license, comprehensive license or residential door-to-door solicitors business license issued under this chapter who violates any provision of this chapter will be subject to suspension or revocation proceedings against the license as outlined within Chapter 5.04 of city code.

C. Upon investigation and following determination that a door-to-door solicitor has violated any portion of Section 5.76.050 outlined in this chapter, the chief of police shall have the authority to revoke the individual's license identification badge and issue a citation.

1. No person charged with violating Section 5.76.050 (A) of this chapter shall be convicted if he or she produces in court a valid residential door-to-door solicitors business license and the license identification badge previously issued to him or her that was valid at the time the citation was issued.

Section 2. That this ordinance is in full force and effect upon its approval and publication but not sooner than May 1, 2015.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

(S E A L)

RICHARD L. KAYSEN, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

Publish: Wyoming Tribune-Eagle